BIG HAT PROGRAM TERMS AND CONDITIONS OF USE

Effective date: October 10, 2026 Last updated: October 10, 2026

1. Agreement to These Terms

These Terms and Conditions ("Terms") are a binding agreement between you ("User," "you") and BIG Hat Entertainment LLC ("BIG Hat," "we," "us"). They govern your installation and use of the BIG Hat Program, including its Trivia, Karaoke, Music Bingo and Story Generator tools, its audience display windows, its updates, and any related documentation (together, the "Program"). By installing or using the Program you agree to these Terms. If you do not agree, do not install or use the Program.

2. License

We grant you a limited, non-exclusive, non-transferable, revocable license to install and use the Program on computers you own or control, for hosting live entertainment events such as trivia nights, karaoke nights and music bingo. [This license is limited to the number of devices or venues covered by your agreement with us.] All rights not expressly granted are reserved by BIG Hat.

3. Restrictions

You may not:

- copy, sell, rent, lease, sublicense or distribute the Program, except as these Terms allow;
- decompile, reverse engineer or attempt to extract the source code of the Program, except where the law allows it despite this restriction;
- remove or alter any copyright, trademark or other notices in the Program or in materials it produces;
- use the Program to infringe the rights of others, or in violation of any law;
- interfere with, disable or bypass any security, licensing or technical protection in the Program;
- use the Program to build a competing product or service.

4. Alpha and Beta Software

The Program is released in frequent versions, and some versions are labeled alpha or beta. Features can change, move or be removed without notice, and a given version may contain errors. You should test your setup before an event. You are responsible for having a backup

plan, such as a second device or a recorded playlist, in case the Program does not work as expected during a live event.

5. Your Content

The Program lets you use content you provide, including Bingo theme folders, song lists, video files, card pictures, venue logos, overlays, filler music, trivia questions and presentations ("Your Content"). You keep ownership of Your Content. You are solely responsible for Your Content, and you confirm that you have all rights and permissions needed to use it with the Program, including to display, play and print it. We do not review, endorse or take responsibility for Your Content.

6. Music, Video and Public Performance Licensing

Each state has different laws governing the use of music, music videos and performances in public and private settings. Some states require that the venue holding event may be responsible for the applicable licensing. The Program does not grant you any license to music, videos, lyrics, images or other third-party works. If you play, display or print copyrighted material at an event, you are solely responsible for obtaining every license required, including public performance, synchronization, karaoke and lyric display licenses, and for paying any fees, such as those owed to performing rights organizations, to the venue or to rights holders. The venue's own licenses may not cover your use. We are not responsible for any claim that arises from the content you choose to play.

7. Third-Party Services, Including YouTube

Parts of the Program, especially Karaoke, work with third-party services such as YouTube. Those services are not ours, and they have their own terms, rules and technical limits. YouTube and other services may change how they work, restrict or block access, or remove content at any time, which can affect search results, playback or downloads. You agree to follow the terms of any third-party service you use through the Program. We do not guarantee that any song, video or service will be available at any time, and we are not responsible for third-party content or for any loss or claim related to it.

8. Trivia and Other Content Supplied by Us

Questions, answers, slides, graphics, templates and other content we supply or generate (including through the Story Generator) are provided for entertainment. We try to keep them accurate, but we do not guarantee that they are correct, complete, current or suitable for any purpose. You are responsible for reviewing content before presenting it to an audience, including for accuracy and appropriateness.

9. Data and Privacy

- **Stored on your computer.** The Program stores most of its data on your computer, such as settings, folder locations, scores, queues and saved presentations. You are responsible for that computer and for backing up your data.
- **Internet features.** Some features need an internet connection, such as YouTube search, downloads and updates. Features that let guests use their own phones, such as song requests through a QR code, may send limited information through an online relay service so that phones can reach your computer.
- **Guest information.** If you collect names, team names, song requests or other information from guests, you are responsible for doing so lawfully, for any notice or consent that applies, and for protecting that information.
- **Our privacy practices.** BHE_Privacy Policy (October 10, 2026)

10. Updates

We may release updates, fixes and new versions at any time. Some updates may be required for the Program to keep working. We are not obligated to release updates or to support older versions.

11. System Requirements and Your Equipment

The Program needs a compatible computer, operating system, display and internet connection, as described in our documentation (displayed on bighat.live/bh-program). You are responsible for your hardware, screens, audio equipment, network and power. We are not responsible for problems caused by your equipment, your network or your venue.

12. Fees

Unless a refund is required by law, fees are non-refundable.

13. Intellectual Property

The Program, including its software, design, graphics, fonts, templates, text and trademarks, belongs to BIG Hat or its licensors and is protected by copyright, trademark and other laws. Third-party components included in the Program remain under their own licenses. If you send us feedback or suggestions, you give us the right to use them without payment or obligation to you.

14. Disclaimer of Warranties

TO THE FULLEST EXTENT THE LAW ALLOWS, THE PROGRAM IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED. THIS INCLUDES ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE OR

NON-INFRINGEMENT. WE DO NOT PROMISE THAT THE PROGRAM WILL BE UNINTERRUPTED, ERROR-FREE OR SECURE, THAT DEFECTS WILL BE CORRECTED, OR THAT ANY THIRD-PARTY SERVICE OR CONTENT WILL BE AVAILABLE OR WORK AS EXPECTED.

15. Limitation of Liability

TO THE FULLEST EXTENT THE LAW ALLOWS, BIG HAT AND ITS OWNERS, OFFICERS, EMPLOYEES AND LICENSORS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST REVENUE, LOST DATA, LOSS OF GOODWILL OR EVENT CANCELLATIONS OR DISRUPTIONS, ARISING OUT OF OR RELATED TO THE PROGRAM OR THESE TERMS, EVEN IF WE HAVE BEEN TOLD THEY MAY OCCUR. OUR TOTAL LIABILITY FOR ALL CLAIMS RELATED TO THE PROGRAM WILL NOT EXCEED THE AMOUNT YOU PAID US FOR THE PROGRAM.

16. Indemnification

You agree to defend, indemnify and hold harmless BIG Hat and its owners, officers, employees and licensors from any claim, loss, liability or expense (including reasonable legal fees) arising from Your Content, the music, video and other material you play or display, your events, your violation of these Terms or the law, or your violation of any third party's rights.

17. Termination

You may stop using the Program at any time by uninstalling it. We may suspend or end your license if you break these Terms or if we stop offering the Program. When your license ends, you must stop using the Program and delete your copies. Sections that by their nature should continue (including 5, 6, 7, 13 to 16 and 18) will continue after termination.

18. Governing Law and Disputes

These Terms are governed by the laws of the State of Arizona, without regard to its conflict-of-law rules. Any dispute will be resolved by binding arbitration under the rules of BIG Hat Entertainment LLC in Phoenix, Arizona, and you waive any right to a jury trial or class action.

19. Changes to These Terms

We may update these Terms from time to time. We will post the new version and update the "Last updated" date, and [we may also notify you in the Program]. If you keep using the Program after a change takes effect, you accept the updated Terms.

20. General

These Terms, together with any separate written agreement between you and us, are the entire agreement about the Program. If any part is found unenforceable, the rest stays in effect. If we do not enforce a right, we have not given it up. You may not transfer your rights under these Terms without our written consent. We may transfer ours as part of a sale or reorganization of our business.

21. Contact

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